

25SMCV06086 25SMCV06086

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-06

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This is a motion to tax costs. Defendant filed an untimely opposition. Plaintiff filed a reply. The court will consider the opposition, but

the late filing is indicative of sloppy practice by the defendant, which is mirrored in the lack of any justification for the aspect of costs under attack.

The issue here is attorneys' fees. There is also an aspect of electronic filing fees. As to the latter, it appears that there is a typo on the cost memo, and the court is inclined to DENY that aspect of the motion. That is a \$439.50 issue.

As to attorneys' fees, the court is inclined to GRANT. The court sees no basis for a fee award. Defendant argues that somehow CCP section

1033 allows for such a recovery, but the defense is wrong. There is no statutory basis for fees that the court can see. There might in theory be a contractual basis for one, although it has not been pointed out to the court. But even if there were, plaintiff's decision to dismiss the case would mean that such fees cannot be recovered under Civil Code section 1717.

Accordingly, as to the fees, the motion is GRANTED. Defendant never should have sought the cost and never should have opposed the motion.